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DISTRICT COURT OF
THE FIRST CIRCUIT
2019 AUG 13 P 3:44
CIVIL MOTIONS
CLERK
Electronically Filed
FIRST CIRCUIT
1RC191003776
13-AUG-2019
03:44 PM
Dkt. 9 DOC

Of Counsel:
ROECA LURIA SHIN LLP
A Limited Liability Law Partnership

APRIL LURIA 4687-0
aluria@rlhlaw.com
Davies Pacific Center
841 Bishop Street, Suite 900
Honolulu, Hawaii 96813-3917
Telephone: (808) 538-7500
Facsimile: (808) 521-9648

Attorney for Counterclaim Defendant
Association of Apartment Owners of Marine Surf Waikiki, Inc.,
by its Board of Directors

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiff, vs. NIKODEM PIKOR, Defendants.	CIVIL NO. 1RC191003776 (Assumpsit) COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., by its Board of Directors' ANSWER TO DEFENDANT AND THIRD-PARTY PLAINTIFF NIKODEM PIKOR'S COUNTERCLAIM (FILED JULY 8, 2019); CERTIFICATE OF SERVICE Trial Date: None
NIKODEM PIKOR, Defendant and Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	

COUNTERCLAIM DEFENDANT ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., by its Board of Directors' ANSWER TO DEFENDANT AND THIRD-PARTY PLAINTIFF NIKODEM PIKOR'S COUNTERCLAIM (FILED JULY 8, 2019)

Association of Apartment Owners of Marine Surf Waikiki, Inc., by its Board of Directors ("Counterclaim Defendant") answers the Counterclaim of Defendant and Third-Party Plaintiff Nikodem Pikor ("Pikor") as follows:

FIRST DEFENSE

1. The Counterclaim fails to state a claim against Counterclaim Defendant upon which relief can be granted.

SECOND DEFENSE

2. Counterclaim Defendant admits the allegations contained in Paragraph 1 of the Counterclaim.

3. With respect to the allegations contained in Paragraph 2 of the Counterclaim, Counterclaim Defendant states that it is without knowledge or information sufficient to form a belief as to the truth or veracity of the allegations thereof.

4. Counterclaim Defendant denies the allegations contained in Paragraph 3 of the Counterclaim.

Breach of Fiduciary Duty

5. With respect to the allegations contained in Paragraph 4 of the Counterclaim, Counterclaim Defendant admits that Plaintiff Association of Apartment Owners of Marine Surf Waikiki, Inc. contracted for elevator maintenance with Third-Party Defendant Thyssenkrupp

Elevator Corporation, but denies the truth of the remaining allegations contained in Paragraph 4.

6. With regard to the allegations contained in Paragraph 5 of the Counterclaim, Counterclaim Defendant states that the document speaks for itself, and to the extent that Paragraph 5 alleges factual allegations of wrongdoing against Defendant, it denies the same.

Breach of Covenant; Negligence

7. Counterclaim Defendant denies the allegations contained in Paragraph 6 (sic) of the Counterclaim.

8. Counterclaim Defendant denies each and every allegation contained in the Counterclaim not specifically admitted hereinabove.

THIRD DEFENSE

9. Pikor's injuries and/or damages, if any, were proximately caused or contributed to by his own negligence, and, therefore, Pikor cannot recover for said injuries and/or damages, if any.

FOURTH DEFENSE

10. Pikor did not exercise due care to avoid the injuries complained of and, therefore, voluntarily and knowingly assumed the risk which proximately caused his injuries and damages, if any.

FIFTH DEFENSE

11. The claims of Pikor as alleged herein are due to the negligence, fault, breach of warranty, and/or strict liability of other parties over whom Counterclaim Defendant has no control and for which Counterclaim Defendant bears no responsibility or liability.

SIXTH DEFENSE

12. Pikor has failed to mitigate any damages to which he may be, or may appear to be, entitled.

SEVENTH DEFENSE

13. Pikor's claims are barred by his own conduct.

EIGHTH DEFENSE

14. Pikor's claims are barred by the equitable doctrine of unclean hands.

NINTH DEFENSE

15. Counterclaim Defendant owed no duty to Pikor, and, even assuming such a duty existed, Counterclaim Defendant did not breach said duty.

WHEREFORE, Counterclaim Defendant prays as follows:

A. That the Counterclaim be dismissed as against it;

B. That it be awarded its costs, expenses and reasonable attorneys' fees; and

C. That if it be determined that Plaintiff, Counterclaim Defendant, Defendant and/or any other party to this action were negligent with respect to the events described in the Counterclaim, the comparative degree of fault of each such party be determined in accordance with Section 663-31, H.R.S., and judgment be rendered accordingly.

D. That it be awarded such other further relief as the Court deems appropriate.

DATED: Honolulu, Hawaii, AUG 13 2019.

APRIL LURIA
Attorney for Counterclaim Defendant
Association of Apartment Owners of
Marine Surf Waikiki, Inc., by its Board of Directors

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiff, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 (Assumpsit) CERTIFICATE OF SERVICE Trial Date: None
NIKODEM PIKOR, Defendant and Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	

454-230/2019-08-06 Our Ans Counterclaim.wpd

CERTIFICATE OF SERVICE

On this date a copy of the foregoing document was served by hand-delivery [HD]; United States mail, first class postage prepaid [M]; E-Mail [EM]; electronically through the Judiciary Electronic Filing and Services System [E]; or facsimile transmission [F] as indicated, upon the following, on AUG 13 2019:

PHILIP L. LAHNE, ESQ. [HD]
GLENN S. HORIO, ESQ.
Anderson Lahne & Fujisaki LLP
Pacific Guardian Ctr., Makai Twr.
733 Bishop St., Ste. 2301
Honolulu, HI 96813
Plahne@alf-hawaii.com

Attorney for Plaintiff
Association of Apartment Owners of Marine Surf Waikiki, Inc.,
by its Board of Directors

JOSEPH N. A. RYAN, JR., ESQ. [M]
Attorney at Law, LLLC
41-430 Waikupanaha St.
Waimanalo, HI 96795
jryan808@JosephRyanJrAALLLLC.onmicrosoft.com

Attorney for Defendant
Nikodem Pikor

AUG 13 2019

DATED: Honolulu, Hawaii, _____.

_____
APRIL LURIA
Attorney for Counterclaim Defendant
Association of Apartment Owners of
Marine Surf Waikiki, Inc., by its Board of Directors